
REPORT · 2026-06-20

Phase 1 Engagement Agreement — Agape Website Rebuild

Phase 1 Engagement Agreement

AUTHOR

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DATE

2026-06-20

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THIS DOCUMENT IS A TEMPLATE, NOT LEGAL ADVICE. It is provided as a working draft for review by counsel before signature. Morgan Getkin (the "Developer") is not a lawyer and makes no representation that this agreement is suitable for any specific jurisdiction or engagement without independent legal review. Both parties are encouraged to have this agreement reviewed by their respective counsel before execution.

1. Parties and Effective Date

This **Phase 1 Engagement Agreement** (the "Agreement") is entered into as of **[EFFECTIVE DATE]** by and between:

Developer: Morgan Getkin (sole proprietor) [DEV ADDRESS] [DEV EMAIL] [DEV PHONE]
("Developer")

Client: Agape Counseling Services 815 U.S. 9, Lanoka Harbor, NJ 08734 info@agapenj.org (609) 242-0086 ("Client")

The Developer and the Client are each a "Party" and together the "Parties."

2. Background and Scope of Work

2.1 Background

The Client operates a substance use disorder (SUD) treatment program and currently publishes a website at agapenj.org that runs on a vendor-managed WordPress installation (Town Square Interactive / Beacon Easton theme) at a recurring annual cost of \$1,788. The Client wishes to rebuild the site on a modern, owned, free-tier infrastructure stack that meets federal 42 CFR Part 2 confidentiality requirements and is operationally sustainable by a non-technical Client team.

2.2 Scope of Work — Phase 1 (the "Deliverables")

The Developer will design, build, verify, and transfer to the Client the website described in [CLIENT-PROPOSAL.md](#) (the "Proposal"), which is incorporated by reference into this Agreement as **Exhibit A**. The Deliverables, in summary, are:

- A single-page, statically generated Astro website at agapenj.org
- 42 CFR Part 2-compliant content posture (no third-party trackers, no testimonials at launch, intake-only contact form)
- Lighthouse 100/100/100/100 score on the demo-ready build (verified per the Pre-Demo Checklist: 62 pass / 0 fail / 1 warn as of 2026-06-20)

- Hosting on **Cloudflare Pages** (free tier, direct upload via `wrangler pages deploy` — no GitHub required in the Client's package)
- A **Cloudflare account** under the Client's ownership (transferred at the demo per §8.5 of the internal design spec)
- **Web3Forms** (or Formspree) as the contact form provider
- A non-technical editing guide, a Loom walkthrough, a compliance trail (`COMPLIANCE.md`), and the Phase 2 workstream index (`PHASE-2.md`)
- A zipped **source code archive** delivered as part of the handoff package — every file editable in any text editor, no Git knowledge required
- A 30-day post-transfer support window per §7

2.3 Out of Scope (Phase 2)

Workstreams not in §2.2 are **Phase 2 workstreams** and are governed by `PHASE-2.md`, which is incorporated by reference as **Exhibit B**. Phase 2 workstreams require a separate written estimate and written approval before any work begins; they are not absorbed into this Agreement.

3. Pre-Build Deliverables from the Client

Before the build phase begins (or, where noted, before the demo / DNS cutover), the Client shall provide:

#	Deliverable	Why	When
3.1	One authorizing email address (Client's primary Gmail or work email)	Used to create the Cloudflare account and the form provider under the Client's ownership	Before pre-build
3.2	Cloudflare account admin access (or invitation to create one under the Client's ownership)	Required to create the Cloudflare Pages project, configure the custom domain <code>agapenj.org</code> , and enable Cloudflare Web Analytics	Before pre-build
3.3	Web3Forms dashboard login (or invitation to create one)	Form endpoint configuration — recipient email routing, sender envelope, spam protection keys	Before pre-build
3.4	Google Workspace admin access	Required to create the <code>dmarc-reports@agapenj.org</code> mailbox for DMARC aggregate reports (§6.9 of the internal design spec)	Before the demo
3.5	A full export of the Client's current DNS records	Required. The Developer uses this as the authoritative reference for what DNS records must be preserved through the cutover. Cross-references the export against the live <code>dig</code> audit before flipping anything. Most registrars allow downloading this as a zone file or pasting a screenshot from the DNS dashboard — either is fine. The Developer requests the export using the following suggested wording (provided to the Client as a copy-paste template): <i>"We are reviewing our current domain settings and need a full export of all active A, CNAME, MX, and TXT records so we have them for our records."</i>	Before the demo (for pre-cutover verification)
3.6	Registrar login (GoDaddy / Namecheap / etc.) or confirmation that the domain is unlocked	Required to confirm <code>agapenj.org</code> is unlocked and to update nameservers if needed. Per §7.5 of the internal design spec, Cloudflare is already the authoritative DNS provider for the Client, so this is verification only — no nameserver change should be needed	At pre-build
3.7	EIN (the Client's 501(c)(3) Employer)	Added to the footer disclaimer. Without it, the footer reads <code>[EIN: PENDING]</code>	At the demo

#	Deliverable	Why	When
	Identification Number)		
3.8	Top 10 most-asked questions for the FAQ section	The Client's intake team ranks the 10 questions they answer most often by phone or email, then drafts a plain-text answer for each. Format: numbered list, one question + one answer per row, plain prose, no jargon	At the demo
3.9	Sign-off on this Agreement (per §13 below)	Triggers the demo → DNS cutover → transfer sequence	Before pre-build

The Developer shall not be liable for delays in the build, demo, or DNS cutover that are caused by the Client's failure to deliver any of the items in §3.1–§3.9 within a reasonable timeframe after request.

4. Fee and Payment Terms

4.1 Fee

The total fee for the Phase 1 Deliverables is **USD \$2,000** (the "Fee"), invoiced in two equal milestones per §4.2.

4.2 Invoicing

The Developer will issue two invoices to the Client:

- **Invoice 1 — Deposit:** \$1,000 USD, due on or before the Effective Date.
- **Invoice 2 — Final payment:** \$1,000 USD, due on the date of the §6.4 transfer.

Payment terms for each invoice:

- **Due date:** Net 14 days from invoice date.
- **Payment method:** Bank transfer (ACH preferred) or check. Payment details are on the invoice.
- **Late fee:** 1.5% per month on balances unpaid 30+ days past due.

4.3 What the Fee Covers

The Fee covers all Phase 1 Deliverables in §2.2, including:

- Design, build, and verification (Pre-Demo Checklist gate: 62 pass / 0 fail / 1 warn as of 2026-06-20)

- The 30-day post-transfer support window per §8
- All Cloudflare, Web3Forms (or Formsfree), and DMARC-rua-mailbox accounts created by the Developer during the build
- The credentials envelope (handover document) per §6
- The DMARC email-authentication rollout (§6.9 of the internal design spec) — one `TXT` record at `_dmarc.agapenj.org`
- The DNS cutover coordination + the 30-day safety net

The Fee does **not** cover:

- Phase 2 workstreams (per §2.3)
- Legal review of the site content, privacy policy, 42 CFR Part 2 notice, or accessibility statement — the Client's responsibility per §10.3 of this Agreement
- USPTO trademark filing or Verified Mark Certificate procurement (BIMI, a Phase 2 workstream per the Proposal)
- The annual `agapenj.org` domain renewal fee (~\$15/year, paid by the Client directly to the registrar)
- Any paid-tier upgrade of any vendor (the Phase 1 stack is built entirely on free tiers)

5. Acceptance, Demo, and Transfer

5.1 Build → Demo

The Developer has built the Phase 1 Deliverables against the Pre-Demo Checklist (defined in the internal `DESIGN.md`, Appendix C, which is incorporated by reference as **Exhibit C** for measurement purposes only and is not otherwise binding on the Parties). Upon reaching Pre-Demo Checklist green (62 pass / 0 fail / 1 warn as of 2026-06-20), the Developer will schedule a single demo session (typically 60–90 minutes) with the Client.

5.2 The Demo

At the demo, the Developer will:

1. Walk the Client through the running site end-to-end (mobile-first, then desktop)
2. Walk the Client through the handoff package contents (§6.1)
3. Capture the Client's **DMARC policy choice** (`p=none` / `p=quarantine` / `p=reject` ; default `p=quarantine`) and **rua reporting mailbox choice** (default `dmarc-reports@agapenj.org`) — both written into the credentials log on the spot

4. Add the new credentials to the Client's password manager live, with a verbal walkthrough of each account
5. Verify the 301 redirects, DNS resolution, HTTPS, and form submission end-to-end
6. Coordinate the DNS cutover (Cloudflare-internal; per §7.5 of the internal design spec + the §3.5 DNS-export verification)
7. Walk the Client through the Phase 1 → Phase 2 transition model (per `PHASE-2.md`)

5.3 Acceptance

The Client's acceptance of the Phase 1 Deliverables occurs at the demo, upon the Client's written confirmation (email is sufficient) that the Pre-Demo Checklist items have been demonstrated to the Client's reasonable satisfaction.

5.4 Transfer of Deliverables (pending Agreement + payment)

The transfer of the Deliverables — including but not limited to the Cloudflare account admin, the Web3Forms (or Formspree) account, the DMARC `rua` mailbox, and the credentials envelope — does not occur at the demo itself. The transfer occurs **upon the Client's written agreement to this Phase 1 Engagement Agreement** (i.e., upon the Client's countersignature on §13 below) **and** the Developer's receipt of the §4.2 Invoice 2 final payment.

Until both conditions are met, the Developer retains administrative access to all Phase 1 accounts and rollback authority over the build.

5.5 Why "pending Agreement + payment"

This structure protects both Parties:

- The Client sees the live demo (and the running site at the Pre-Demo Checklist state) **before** committing to pay or to take ownership.
- The Developer retains the ability to fix late-discovered issues without an ownership transfer blocking the path — particularly important given the 42 CFR Part 2 compliance posture of the build.

5.6 No GitHub repository in the Client's package

Per the 2026-06-20 hosting decision (and consistent with the §2.2 Deliverables), the Client does **not** receive a GitHub repository as part of this engagement. The source code is delivered as a zipped archive in the handoff package (§6.1). The Client is not required to have, use, or learn Git or GitHub at any point in this engagement or in ongoing operations.

6. Handoff Package

6.1 Contents

At the demo (per §5.2), the Developer presents the Client with a finished handoff package containing:

- **The Code** — a zipped source code archive (the full Astro + Tailwind + DaisyUI build, `src/`, `public/`, configuration files, content collections). Opens in any text editor or VS Code. No Git required.
- **The Content** — every page of content as a `.md` file in `src/content/`, every image in `public/`, plus `EDITING_GUIDE.md` and a Loom walkthrough
- **The Compliance Trail** — `COMPLIANCE.md` (implementation status of every §6 item from the Proposal) and `TESTIMONIAL-REVIEW.md` (the 42 CFR Part 2 worksheet for adding compliant testimonials)
- **The Operations** — Cloudflare account, Web3Forms (or Formspree) account, Google Workspace admin (for DMARC `rua` mailbox), domain management, and a credentials log enumerating every account, every key, and every "where to log in" URL
- **The Rollback** — the previous Town Square Interactive site remains live for 30 days post-cutover as a safety net
- **§3.5 DNS export** — preserved and cross-referenced against the post-cutover state, logged in `COMPLIANCE.md` §6.9 / §7.5 rows

6.2 The Credentials Envelope

The credentials log is provided to the Client as a sealed envelope (printed or PDF) at the demo, with a verbal walkthrough of each account. The Client adds each credential to their password manager live during the demo. The Developer does not email credentials ahead of the demo and does not retain administrative access after the transfer per §5.4 completes.

7. Intellectual Property and Ownership

7.1 Pre-existing IP

The Developer retains all rights to any pre-existing tools, libraries, or methodologies used in the build (e.g., the Astro framework, Tailwind CSS, DaisyUI, the Zod schema pattern). These are licensed to the Client under their respective open-source licenses (MIT, Apache 2.0, etc.) as documented in the repository's `LICENSE` file.

7.2 Deliverables IP

Upon the Client's countersignature on this Agreement **and** the Developer's receipt of both §4.2 invoices, all right, title, and interest in and to the Phase 1 Deliverables — including but not limited to the website source code (delivered as a zipped archive per §6.1), the content (Markdown files), the brand assets (logo SVGs), the configuration files (`astro.config.mjs` , `tailwind.config.js` , etc.), and the documentation (`EDITING_GUIDE.md` , `COMPLIANCE.md` , `PHASE-2.md`) — transfer to the Client.

7.3 Developer's Right to Reference

The Developer retains the right to reference the engagement (under the Client's name and a description of the work performed) in the Developer's professional portfolio, on the Developer's website, and in proposals to prospective clients. The Developer will **not** disclose the Client's confidential information (§9) in any such reference.

7.4 Open-source posture

The Client is encouraged to keep the zipped source code archive's `LICENSE` file as MIT, which is the default for nonprofit contribution. The Client may change the license at any time after the transfer per §5.4 completes. The Client is **not** required to publish the source code publicly; the zipped archive is for the Client's internal use.

8. 30-Day Post-Transfer Support Window

8.1 What is included

For 30 calendar days following the completion of the transfer per §5.4 (transfer = Client's countersignature on §13 **and** Developer's receipt of the §4.2 Invoice 2 final payment), the Developer provides, at no additional cost:

- **Bug fixes** — any defect in the Phase 1 Deliverables discovered in the 30-day window is fixed at no charge.
- **Small copy edits** — up to 30 minutes of small text changes per day (one at a time) on existing content.
- **DNS / cutover questions** — the Developer walks the Client through the final Town Square Interactive cancellation, the 301 redirect retirement, or any Cloudflare DNS issue.
- **DMARC monitoring** — verification that the `rua` mailbox is receiving aggregate reports; recommendations on policy escalation (`p=quarantine` → `p=reject` after 90+ days of clean reports).

- **[ATTORNEY REVIEW PENDING] marker drop** — once the Client's counsel signs off on the form-consent text, the marker is removed from production at no charge. No code change required.
- **First compliant testimonial wire-up** — if the Client obtains a 42 CFR Part 2-compliant signed authorization during the 30-day window and submits the **.md** file, the Developer wires it into the live site at no charge. Subsequent testimonials (or testimonials that arrive after the 30-day window) are quoted as a Phase 2 workstream.

8.2 What is NOT included

The 30-day window does not cover:

- Any new feature, change request, or Phase 2 workstream (per §2.3)
- Issues caused by the Client's modifications to the codebase after the transfer
- Issues caused by a third party (vendor outage, DNS registrar failure, etc.)
- Legal review of any text on the site (the Client's responsibility per §10.3)

8.3 After 30 days

After the 30-day window, support reverts to:

- **Hourly rate** at the Developer's then-current rate, or
- A separate maintenance agreement signed by both Parties

9. Confidentiality

9.1 The Developer's obligation

The Developer will hold in confidence and not disclose to any third party (except as required by law or with the Client's written consent) any non-public information regarding the Client, the Client's patients, the Client's staff, the Client's clinical operations, or the Client's business that the Developer learns in the course of the engagement.

9.2 42 CFR Part 2 context

The Client operates a federally-regulated substance use disorder treatment program subject to **42 CFR Part 2** (stricter than HIPAA). The Developer acknowledges that:

- The build is designed to be **42 CFR Part 2-compatible by architecture** (no third-party trackers, no profiling, cookieless analytics) but is **not** a clinical platform and is **not HIPAA-covered**.
- The Developer's exposure to Protected Health Information (PHI) in the course of the build is incidental and limited (e.g., reviewing legacy testimonial text for compliance scrubbing).

- The Developer will not retain copies of any PHI beyond what is necessary to perform the build, and will redact or delete any incidental PHI from working files at the conclusion of the build.

9.3 The Client's obligation

The Client will hold in confidence and not disclose to any third party (except as required by law or with the Developer's written consent) any non-public methodology, pricing, or proprietary information of the Developer's that the Client learns in the course of the engagement.

9.4 Survival

This §9 survives the termination or expiration of this Agreement for a period of three (3) years.

10. Term and Termination

10.1 Term

This Agreement commences on the Effective Date and continues until:

- The Deliverables have been transferred per §5.4, **and**
- The 30-day post-transfer support window per §8 has expired, **and**
- All amounts due under §4 have been paid

10.2 Termination for convenience by the Client

The Client may terminate this Agreement for convenience at any time before the transfer per §5.4 by written notice to the Developer. Upon such termination:

- The Developer will deliver the work-in-progress to the Client under the same terms as the transfer per §5.4 (the Client owns what has been built, regardless of payment status, at termination for convenience).
- The Fee is reduced to reflect the actual work performed, at the Developer's then-current hourly rate, with a credit or refund to the Client for any amount paid in excess of the work performed.
- If the work performed equals or exceeds the Fee, no refund is due.

10.3 Termination for cause

Either Party may terminate this Agreement for cause upon written notice if the other Party materially breaches the Agreement and fails to cure the breach within 15 calendar days of written notice. Upon termination for cause:

- By the Client (Developer's breach): the Fee is refunded pro rata for work not performed, and the Client owns all work performed.
- By the Developer (Client's breach, including non-payment): the Developer retains administrative access until the matter is resolved; the Client does not receive the transfer per §5.4 until the breach is cured.

10.4 Effect of termination

Upon any termination, each Party will return or destroy the other Party's Confidential Information per §9, except as required by law or as necessary to enforce the terms of this Agreement.

11. Limitation of Liability

11.1 Cap

The Developer's total cumulative liability under this Agreement is limited to the **total Fee paid by the Client** under §4.

11.2 Exclusion of consequential damages

Neither Party is liable to the other for any indirect, incidental, special, consequential, or punitive damages, including but not limited to lost profits, lost revenue, lost data, or business interruption, even if advised of the possibility of such damages.

11.3 Client responsibility for legal review

The Client is solely responsible for legal review of the website's content, privacy notice, 42 CFR Part 2 notice, accessibility statement, and any other text published on the site. The Developer does not provide legal advice. The Client's failure to obtain legal review of the **[ATTORNEY REVIEW PENDING]** items does not give rise to Developer liability.

11.4 No guarantee of third-party services

The Developer does not guarantee the availability, performance, or terms of any third-party service used in the build (Cloudflare, Web3Forms / Formsfree, the domain registrar, etc.). The Client assumes the risk of any change in those services' terms or availability.

12. Dispute Resolution

12.1 Informal resolution first

The Parties will attempt in good faith to resolve any dispute arising out of or relating to this Agreement through informal discussion between the Client's primary contact and the Developer, for a period of not less than 15 calendar days from written notice of the dispute.

12.2 Mediation

If informal resolution does not resolve the dispute, the Parties will attempt to resolve it through non-binding mediation administered by a mutually-agreed mediator. Each Party bears its own costs; the mediator's fee is split equally.

12.3 Jurisdiction and venue

If mediation does not resolve the dispute, any legal action or proceeding arising out of or relating to this Agreement will be brought exclusively in the state and federal courts located in **[JURISDICTION TO BE SPECIFIED — recommended: the State of New Jersey, Ocean County, given the Client's principal place of business]**. Each Party consents to the personal jurisdiction of such courts and waives any objection to venue.

12.4 Governing law

This Agreement is governed by the laws of the State of **[GOVERNING LAW TO BE SPECIFIED — recommended: the State of New Jersey]**, without regard to its conflict-of-laws principles.

13. General Provisions

13.1 Entire agreement

This Agreement, together with its Exhibits A, B, and C and the referenced **CLIENT-PROPOSAL.md** and **PHASE-2.md** documents, constitutes the entire agreement between the Parties regarding the Phase 1 engagement and supersedes all prior negotiations, representations, or agreements.

13.2 Amendment

This Agreement may be amended only by a written instrument signed by both Parties.

13.3 Severability

If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions will continue in full force and effect.

13.4 No waiver

The failure of either Party to enforce any provision of this Agreement is not a waiver of that Party's right to enforce that provision later.

13.5 Assignment

Neither Party may assign this Agreement without the other Party's written consent, except that the Developer may assign this Agreement to a successor entity in connection with a merger, acquisition, or sale of substantially all of its assets, upon written notice to the Client.

13.6 Notices

All notices under this Agreement will be in writing and delivered by email to the addresses on §1, with delivery deemed effective on the next business day after sending.

13.7 Counterparts and electronic signature

This Agreement may be executed in counterparts, each of which is deemed an original and all of which together constitute one instrument. Electronic signatures (DocuSign, Adobe Sign, or equivalent) are valid and binding.

14. Signatures

IN WITNESS WHEREOF, the Parties have executed this Phase 1 Engagement Agreement as of the Effective Date.

For the Developer (Morgan Getkin):

Signature: _____

Printed: Morgan Getkin

Title: Sole Proprietor

Date: _____

For the Client (Agape Counseling Services):

Signature: _____

Printed: _____

Title: _____

Date: _____

Exhibits

- **Exhibit A:** `docs/CLIENT-PROPOSAL.md` — the Proposal, including §2 (who we are), §3 (audit), §4 (what was built), §5 (scope boundary), §6 (Phase 2 workstreams), §9 (operating costs), §10 (risks & assumptions), §11 (what we need from you).
- **Exhibit B:** `docs/PHASE-2.md` — the Phase 2 workstream index and the engagement model.
- **Exhibit C:** `docs-internal/DESIGN.md`, Appendix C — the Pre-Demo Checklist, used for measurement of §5.1 only and not otherwise binding on the Parties.

END OF AGREEMENT.

Drafted 2026-06-20. Reviewed by counsel? _____ (initial here before signature.)